

26TRCV01474 26TRCV01474

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Case Number: 26TRCV01474 Hearing Date: September 18, 2026 Dept: P

Motion to Compel Arbitration and Stay Proceedings

Moving Party: Defendant Farmers Insurance Exchange

Responding Party: None

RULING

The court considered the moving papers. Defendant's Motion to Compel Arbitration is GRANTED to the extent that issues remain unresolved. The court STAYS the proceedings pending conclusion of the arbitration.

PROCEDURAL BACKGROUND

On April 22, 2026, Plaintiff Precious Evans ("Plaintiff") filed a complaint against Defendant Farmers Insurance Exchange ("Defendant"), alleging a single cause of action for Motor Vehicle.

On June 1, 2026, Defendant filed a demurrer and motion to strike. On July 6, 2026, the court sustained the demurrer without leave to amend and granted Defendant's motion to strike in its entirety without leave to amend.

On June 1, 2026, Defendant filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that on July 6, 2025, an incident occurred at the intersection of Alameda Street and Town Center Drive in Los Angeles, California. (Complaint, p. 4.) Plaintiff alleges that Defendant is liable as the "insurance carriers for Plaintiff's uninsured/underinsured motorist coverage, and have not made offers to make Plaintiff whole." (Complaint, p. 4.)

LEGAL STANDARD

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc. Section 1281.2.) California law favors enforcement of valid arbitration agreements. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-357.)

The Federal Arbitration Act ("FAA") applies to any contract evidencing a transaction involving interstate commerce which contains an arbitration clause. (*Wolls v. Superior Court* (2005) 127 Cal.App.4th 197, 211.) Section 2 of the FAA provides that arbitration provisions shall be enforced, save upon grounds as exist at law or in equity for the revocation of any contract. (*Ibid.*) A state court may refuse to enforce an arbitration clause on the basis of generally applicable contract defenses, such as fraud, duress, or unconscionability. (*Ibid.*) A state court, however, may not defeat an arbitration clause by applying state laws applicable only to arbitration provisions. (*Ibid.*)

For the FAA to apply, a contract must involve interstate commerce. (*Ibid.*) When it applies, the FAA preempts any state law rule that stands as an obstacle to the accomplishment of the FAA's objectives. (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 238.) A party asserting FAA preemption bears the burden to present evidence establishing a contract with the arbitration provision affects interstate commerce, and the failure to do so renders the FAA inapplicable. (*Ibid.*) Evidence must be presented, in the form of declarations or other evidence, that establishes that the contract affects interstate commerce. (*Ibid.*) "[S]ince arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement." (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963.)

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) the right to compel arbitration has been waived by the petitioner; or (b) grounds exist for the revocation of the agreement." (Code Civ. Proc. Section 1281.2(a-b).) Thus, in assessing a motion to compel arbitration, the moving party "bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the [motion] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284, citation omitted.)

"If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. Section 1281.4.)

DISCUSSION

Moving Party's Argument

Defendant argues that Plaintiff has been covered by an automobile insurance policy issued by Defendant that includes uninsured motorist coverage, and the policy contains a binding arbitration provision. Defendant argues that both California law and the parties' insurance policy require that the instant dispute is resolved through arbitration.

Merits of the Motion

At the outset, the court notes that it previously sustained Defendant's demurrer to Plaintiff's complaint without leave to amend, and granted Defendant's motion to strike in its entirety without leave to amend.

To the extent that issues remain unresolved, the court finds that arbitration is mandatory pursuant to Insurance Code Section 11580.2(f), which provides:

“The policy...shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.”

(Ins. Code Section 11580.2(f).)

Defendant correctly notes that Plaintiff alleges damages arising from a motor vehicle collision involving an uninsured driver. (Complaint, p. 4.) Additionally, Defendant’s counsel declares that at all relevant times, Plaintiff was covered under any automobile insurance policy issued by Defendant that includes uninsured motorist coverage, with the policy containing a binding arbitration provision (the “Auto Policy”). (Thomas Decl., ¶ 5; Exh. C.)

Section I of “Part II – Uninsured Motorist Coverage” of Plaintiff’s Auto Policy provides that “[i]f an insured person and we do not agree (1) that the person is legally entitled to recover damages from the owner or operator of an uninsured motor vehicle, or (2) as to the amount of payment under this part, either that person or we may demand that the issue be determined by arbitration.” (Thomas Decl., Exh. C, p. 13.) The court finds that in addition to the applicability of Insurance Code Section 11580.2(f) to this matter, Defendant has provided evidence of an arbitration agreement between the parties.

Therefore, pursuant to Insurance Code Section 11580.2(f) and the binding arbitration provision contained in Plaintiff’s Auto Policy, Defendant’s Motion to Compel Arbitration is GRANTED to the extent that issues remain unresolved.

Code of Civil Procedure Section 1281.4 provides that if the court has ordered the arbitration of a controversy, it “shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”

Therefore, pursuant to Code of Civil Procedure Section 1281.4, the court STAYS this action pending conclusion of the arbitration proceedings.

CONCLUSION

Based on the foregoing, Defendant’s Motion to Compel Arbitration is GRANTED to the extent that issues remain unresolved. The court STAYS the proceedings pending conclusion of the arbitration.

Moving party is ordered to give notice of ruling.